

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1480

By: West (Tammy)

AS INTRODUCED

An Act relating to children; amending 10A O.S. 2021, Section 2-2-108, which relates to care of the child; modifying provision related to charge for medical care; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 10A O.S. 2021, Section 2-2-108, is amended to read as follows:

Section 2-2-108. A. After a petition under the provisions of this article has been filed, the court may order the child to be examined and evaluated for medical issues, including behavioral health diagnoses, by a physician or other appropriate professional to aid the court in making the proper disposition concerning the child.

B. Whenever a child concerning whom a petition has been filed appears to be in need of nursing, medical or surgical care, the court may order the parent or other person responsible for the care and support of the child to provide such care in a hospital or otherwise. ~~If the parent or other person fails to provide such~~

1 ~~care, the court may, after due notice, enter an order therefor, and~~
2 ~~the expense thereof, when approved by the court, shall be a charge~~
3 ~~upon the county, but the~~ The court may adjudge that the person
4 having the duty under the law to support the child pay part or all
5 of the expenses of such care. In an emergency the court may, when
6 health or condition of the child may require it, cause the child to
7 be placed in a public hospital or institution for treatment or
8 special care, or in a private hospital or institution which will
9 receive the child for like purpose, and consent to emergency
10 treatment or surgery.

11 SECTION 2. This act shall become effective November 1, 2025.

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